Forests

Setback in Hasdeo

Chhattisgarh high court order upholds mining in the state's Hasdeo Arand forest over community claims, challenging core tenets of Forest Rights Act



The Ghatbarra case garnered attention as Adani Group's mining activities in Hasdeo Arand has faced opposition and protest due to environment destruction and impact on native communities (Photograph courtesy: x/@tribalVoice99_)

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On October 8 this year, the Chhattisgarh High Court dismissed a petition filed by residents of Ghatbarra village, challenging the cancellation of titles that granted them rights over resources in the Hasdeo Arand forest. This dismissal is not just a setback for one of the first villages in the state to be recognised under the Forest Rights Act (FRA), 2006, but could set a dangerous precedent for future conflicts between the rights of forest-dwellers and commercial interests.

The residents of Ghatbarra in Surguja district had moved the court after a district-level forest rights committee (DLC) cancelled the community forest rights (CFR) titles granted to them under FRA, also called the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act. DLC had conferred rights in 2013, allowing residents of the village to gather firewood and minor produce from 810 hectares (ha) of forestland and graze their livestock. However, in 2016, it revoked these rights, claiming that the grant had been made in "error". Ghatbarra village lies within the Parsa East and Kanta Basan (PEKB) coal block, which the Union Ministry of Coal allotted to Rajasthan Rajya Vidyut Utpadan Nigam Ltd (RVUNL) in 2006-07, granting it conditional approvals for mining on the land. RVUNL is a joint venture company in which Adani Enterprises holds majority stake.

While dismissing the petition, the high court observed that DLC had no authority to cancel CFR titles. However, it made an exception on technical grounds, noting that the village residents were unable to

prove their residence in the affected area despite holding the titles.

“It is a disturbing and confusing order. On the one hand, it agrees in principle with the petitioners’ central tenets, which say that DLC cannot revoke CFR titles. However, it places burden on the village residents to prove facts, gather documents and also to challenge all ad-ministrative orders. In practice, this order diminishes the very purpose of FRA,” says a senior lawyer, on condition of ano-nymity.

Protocols overrun

The case has drawn significant attention as the Adani Group’s mining activities in Hasdeo Arand forest have long faced opposition and protests over environmental destruction and impact on native communities. Among the protesting groups are the Hasdeo Aranya Bachao Sangharsh Samiti, the named petitioner in the case. They allege that RVUNL violated a Union government directive, requiring the settlement of forest rights before commencing the mining project. RVUNL first applied for ...

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